

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
3 BILL NO. 3298

By: Timmons, Schreiber, Osburn,
and McCane of the House

4 and

5 Rader and Boren of the
6 Senate

7
8 An Act relating to civil procedure; enacting the
9 Uniform Judicial Interview of Children Act; defining
10 terms; providing scope of act; permitting judicial
11 officer to conduct judicial interview under certain
12 circumstances; permitting certain parties to request
13 judicial interview; providing considerations for the
14 judicial officer; requiring that a judicial officer
15 who conducts a judicial interview have training in
16 interviewing a child; providing judicial interview
17 procedure; directing the judicial officer to grant
18 access to interview record under certain
19 circumstances; directing a court to consider
20 uniformity in applying and construing act; specifying
21 interviews this act shall apply to; providing for
22 codification; and providing an effective date.

23
24
25 AUTHOR: Add the following House Coauthors: Menz and Dollens

26 AUTHOR: Add the following Senate Coauthor: Nice

27 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
28 entire bill and insert

29
30 "An Act relating to civil procedure; creating the
31 Uniform Judicial Interview of Children Act; providing
32 short title; defining terms; providing scope of act;
33 permitting judicial officer to conduct judicial
34 interview under certain circumstances; permitting

1 certain parties to request judicial interview;
2 providing considerations for the judicial officer;
3 requiring certain training for a judicial officer who
4 conducts a judicial interview; establishing
5 procedures for conducting judicial interview;
6 directing judicial officer to grant access to
interview record under certain circumstances;
directing a court to consider uniformity in applying
and construing act; specifying applicability of
provisions; providing for codification; and providing
an effective date.

7 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

8 SECTION 1. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 3401 of Title 12, unless there
10 is created a duplication in numbering, reads as follows:

11 This act shall be known and may be cited as the "Uniform
12 Judicial Interview of Children Act".

13 SECTION 2. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3402 of Title 12, unless there
15 is created a duplication in numbering, reads as follows:

16 As used in the Uniform Judicial Interview of Children Act:

17 1. "Child" means an unemancipated individual who is under
18 eighteen (18) years of age and includes an adult who, because of
19 physical or mental incapacity, is the subject of a covered
20 proceeding;

21 2. "Child's attorney" means an attorney who provides legal
22 representation for a child in a covered proceeding;

23 3. "Court" means a tribunal authorized by law to adjudicate a
24 covered proceeding;

1 4. "Covered proceeding" means:

2 a. a civil judicial proceeding relating to a child to
3 determine any of the following:

- 4 (1) legal or physical custody,
5 (2) parenting time or visitation,
6 (3) relocation,
7 (4) nonparent custody or visitation,
8 (5) private adoption,
9 (6) guardianship or conservatorship, or
10 (7) any other matter involving custodial
11 responsibility, or

12 b. a proceeding under the International Child Abduction
13 Remedies Act, 22 U.S.C., Section 9001 et seq., as
14 amended;

15 5. "Guardian ad litem" means an individual who is appointed by
16 the court to represent a child's best interest in a covered
17 proceeding;

18 6. "Interview record" means a record of a judicial interview;

19 7. "Judicial interview" means communication not under oath or
20 affirmation between a child and a judicial officer in a covered
21 proceeding through which the judicial officer elicits the child's
22 views;

23 8. "Judicial officer" means a judge or other individual who is
24 authorized by law to:

1 a. conduct a covered proceeding and make or recommend a
2 final decision in the proceeding, and

3 b. conduct a judicial interview;

4 9. "Party" means a litigant with a direct interest subject to
5 adjudication in the covered proceeding and does not include a child
6 who is the subject of the proceeding;

7 10. "Person" means an individual, estate, business or nonprofit
8 entity, public corporation, government or governmental subdivision,
9 agency, or instrumentality, or other legal entity;

10 11. "Record" means information:

11 a. inscribed on a tangible medium, or

12 b. stored in an electronic or other medium and
13 retrievable in perceivable form;

14 12. "State" means a state of the United States, the District of
15 Columbia, the Commonwealth of Puerto Rico, the United States Virgin
16 Islands, or any other territory or possession subject to the
17 jurisdiction of the United States. The term includes a federally
18 recognized Indian tribe;

19 13. "Testimony" means evidence provided by a witness under oath
20 or affirmation; and

21 14. "Views" means wishes, preferences, or perspectives. The
22 term includes a child's objection to being returned in a proceeding
23 under the International Child Abduction Remedies Act, 22 U.S.C.,
24 Section 9001 et seq., as amended.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3403 of Title 12, unless there
3 is created a duplication in numbering, reads as follows:

4 A. Except as provided in subsection B of this section, this act
5 shall apply to a covered proceeding in which other law permits a
6 judicial officer to conduct a judicial interview of a child who is
7 the subject of the proceeding.

8 B. This act shall not apply to:

9 1. A judicial interview conducted in a proceeding under the
10 Oklahoma Children's Code or the Oklahoma Juvenile Code;

11 2. Testimony by a child; or

12 3. An interview conducted by a person other than a judicial
13 officer.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 3404 of Title 12, unless there
16 is created a duplication in numbering, reads as follows:

17 A. Unless prohibited by law, the child, child's attorney,
18 guardian ad litem, or a party may request a judicial interview. The
19 decision to conduct a judicial interview is within the judicial
20 officer's discretion and may be at the judicial officer's own
21 initiative.

22 B. A judicial officer may conduct a judicial interview if the
23 judicial officer determines the judicial interview is in the child's
24 best interest and the requirements of other law are met.

1 C. Except as provided by law, in deciding whether a judicial
2 interview is in the child's best interest, the judicial officer
3 shall consider the child's expressed desire to communicate or not
4 communicate with the judicial officer and, to the extent applicable
5 and readily ascertainable:

6 1. The likelihood that the judicial interview will assist the
7 judicial officer in adjudicating the covered proceeding;

8 2. The child's age, maturity, and capacity to formulate and
9 communicate views to the judicial officer;

10 3. The likely benefit to the child from the judicial interview;

11 4. The potential harm to the child from the judicial interview,
12 including embarrassment, harassment, retaliation, or breach of a
13 relationship, and the judicial officer's ability to mitigate harm
14 while still eliciting the child's views;

15 5. The availability and suitability of other processes to
16 elicit the child's views;

17 6. The likelihood that conducting the judicial interview may
18 facilitate recognition or enforcement in another state or foreign
19 court of the decision in the covered proceeding; and

20 7. Any other relevant factor.

21 D. A judicial officer who conducts a judicial interview shall
22 have training in interviewing a child in accordance with judicial
23 standards established under the laws of this state.

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3405 of Title 12, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The judicial officer shall permit a party, the child's
5 attorney, and the guardian ad litem to propose questions in a record
6 for the judicial interview. The judicial officer shall determine
7 the questions asked of the child.

8 B. The judicial officer shall require an interview record to be
9 made.

10 C. The judicial officer shall permit the child's attorney and
11 guardian ad litem to attend the judicial interview in person.

12 D. The judicial officer shall not permit a party or the party's
13 attorney to attend the judicial interview.

14 E. If all parties agree, the parties may stipulate on the
15 record that they waive access to the interview record. A
16 stipulation shall not be valid unless approved by a judicial
17 officer. The judicial officer may not approve a stipulation unless
18 each party stipulates that the party waives any right to access the
19 interview record, to be informed of communication by the child
20 during the judicial interview, and to respond to the child's
21 communication. Unless otherwise stated in the stipulation, a
22 stipulation under this section precludes access to the interview
23 record by the parties in a future covered proceeding, including an
24 appeal.

1 F. Before starting the judicial interview, the judicial officer
2 shall explain to the child in an age-appropriate manner information
3 about the judicial interview, including:

4 1. That the child is not required to answer the judicial
5 officer's questions;

6 2. That the child's views will be considered but the judicial
7 officer is the decision-maker;

8 3. That an interview record will be made;

9 4. Whether any individual will be observing or listening to the
10 judicial interview in real time;

11 5. Whether the interview record will be provided to the
12 parties; and

13 6. That the judicial officer under other law of this state may
14 be required in some circumstances to share with another person the
15 child's communication.

16 SECTION 6. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 3406 of Title 12, unless there
18 is created a duplication in numbering, reads as follows:

19 A. Unless otherwise prohibited by a stipulation approved
20 pursuant to subsection E of Section 5 of this act and except as
21 provided under subsection B of this section, on request of a party
22 and after payment of required costs, the judicial officer shall
23 grant access to the interview record if a party appeals the final
24 decision in the covered proceeding.

1 B. Unless otherwise prohibited by a stipulation approved
2 pursuant to subsection E of Section 5 of this act, if the child
3 makes a factual allegation in the judicial interview, other than
4 communication of the child's views, that is or may be contested and
5 is potentially dispositive in the covered proceeding, the judicial
6 officer shall disclose the allegation to the parties and provide
7 them an opportunity to submit evidence and legal argument in
8 response before making a final decision in the covered proceeding.

9 C. The right of the child, the child's attorney, and the
10 guardian ad litem to access the interview record and participate in
11 the covered proceeding shall be governed by other law.

12 D. The judicial officer shall determine appropriate
13 restrictions on the disclosure of the contents of the judicial
14 interview and the interview record to nonparties during the covered
15 proceeding and after its conclusion.

16 E. On a finding required under Section 24A.29 of Title 51 of
17 the Oklahoma Statutes, the court shall seal the interview record
18 from public access.

19 F. The decision whether to permit the child to provide
20 testimony in a covered proceeding is governed by other law.

21 SECTION 7. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 3407 of Title 12, unless there
23 is created a duplication in numbering, reads as follows:

1 In applying and construing this uniform act, a court shall
2 consider the promotion of uniformity of the law among states that
3 enact it.

4 SECTION 8. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 3408 of Title 12, unless there
6 is created a duplication in numbering, reads as follows:

7 This act shall apply to a judicial interview requested or
8 initiated on or after the effective date of this act.

9 SECTION 9. This act shall become effective November 1, 2026."

10 Passed the Senate the 29th day of April, 2026.

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12 _____
13 Presiding Officer of the Senate

14 Passed the House of Representatives the ____ day of _____,
15 2026.

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17 _____
18 Presiding Officer of the House
19 of Representatives
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22
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24

1 ENGROSSED HOUSE
2 BILL NO. 3298

By: Timmons, Schreiber, Osburn,
and McCane of the House

3 and

4 Rader and Boren of the
5 Senate

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8 An Act relating to civil procedure; enacting the
9 Uniform Judicial Interview of Children Act; defining
10 terms; providing scope of act; permitting judicial
11 officer to conduct judicial interview under certain
12 circumstances; permitting certain parties to request
13 judicial interview; providing considerations for the
14 judicial officer; requiring that a judicial officer
15 who conducts a judicial interview have training in
16 interviewing a child; providing judicial interview
17 procedure; directing the judicial officer to grant
18 access to interview record under certain
19 circumstances; directing a court to consider
20 uniformity in applying and construing act; specifying
21 interviews this act shall apply to; providing for
22 codification; and providing an effective date.

23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

24 SECTION 10. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3401 of Title 12, unless there
is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform
Judicial Interview of Children Act".

SECTION 11. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3402 of Title 12, unless there is created a duplication in numbering, reads as follows:

In the Uniform Judicial Interview of Children Act:

1. "Child" means an unemancipated individual who is under eighteen (18) years of age and includes an adult who, because of physical or mental incapacity, is the subject of a covered proceeding;

2. "Child's attorney" means an attorney who provides legal representation for a child in a covered proceeding;

3. "Court" means a tribunal authorized under other law to adjudicate a covered proceeding;

4. "Covered proceeding" means:

a. a civil judicial proceeding relating to a child to determine any of the following:

- (1) legal or physical custody,
- (2) parenting time or visitation,
- (3) relocation,
- (4) nonparent custody or visitation,
- (5) private adoption,
- (6) guardianship or conservatorship, or
- (7) another matter involving custodial responsibility, and

b. a proceeding under the International Child Abduction Remedies Act, 22 U.S.C. Section 9001, et seq., as amended;

5. "Guardian ad litem" means an individual who is appointed by the court to represent a child's best interest in a covered proceeding;

6. "Interview record" means a record of a judicial interview;

7. "Judicial interview" means communication not under oath or affirmation between a child and a judicial officer in a covered proceeding through which the judicial officer elicits the child's views;

8. "Judicial officer" means a judge or other individual who is authorized by other law to:

a. conduct a covered proceeding and make or recommend a final decision in the proceeding, and

b. conduct a judicial interview;

9. "Party" means a litigant with a direct interest subject to adjudication in the covered proceeding and does not include a child who is the subject of the proceeding;

10. "Person" means an individual, estate, business or nonprofit entity, public corporation, government or governmental subdivision, agency, or instrumentality, or other legal entity;

11. "Record" means information:

a. inscribed on a tangible medium, or

b. stored in an electronic or other medium and
retrievable in perceivable form;

12. "State" means a state of the United States, the District of Columbia, Puerto Rico, the United States Virgin Islands, or any other territory or possession subject to the jurisdiction of the United States. The term includes a federally recognized Indian tribe;

13. "Testimony" means evidence provided by a witness under oath or affirmation;

14. "Views" means wishes, preferences, or perspectives. The term includes a child's objection to being returned in a proceeding under the International Child Abduction Remedies Act, 22 U.S.C. Section 9001, et seq., as amended.

SECTION 12. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3403 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Except as provided in subsection B of this section, this act shall apply to a covered proceeding in which other law permits a judicial officer to conduct a judicial interview of a child who is the subject of the proceeding.

B. This act shall not apply to:

1. A judicial interview conducted in a proceeding under the Oklahoma Children's Code or the Oklahoma Juvenile Code;

2. Testimony by a child; or

1 3. An interview conducted by a person other than a judicial
2 officer.

3 SECTION 13. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 3404 of Title 12, unless there
5 is created a duplication in numbering, reads as follows:

6 A. Unless prohibited by other law, the child, child's attorney,
7 guardian ad litem, or a party may request a judicial interview. The
8 decision to conduct a judicial interview is within the judicial
9 officer's discretion and may be at the judicial officer's own
10 initiative.

11 B. A judicial officer may conduct a judicial interview if the
12 judicial officer determines the judicial interview is in the child's
13 best interest and the requirements of other law are met.

14 C. Except as provided by other law, in deciding whether a
15 judicial interview is in the child's best interest, the judicial
16 officer shall consider the child's expressed desire to communicate
17 or not communicate with the judicial officer and, to the extent
18 applicable and readily ascertainable:

19 1. The likelihood that the interview will assist the judicial
20 officer in adjudicating the covered proceeding;

21 2. The child's age, maturity, and capacity to formulate and
22 communicate views to the judicial officer;

23 3. The likely benefit to the child from the interview;

1 4. The potential harm to the child from the interview,
2 including embarrassment, harassment, retaliation, and breach of a
3 relationship, and the judicial officer's ability to mitigate harm
4 while still eliciting the child's views;

5 5. The availability and suitability of other processes to
6 elicit the child's views;

7 6. The likelihood that conducting the interview may facilitate
8 recognition or enforcement in another state or foreign court of the
9 decision in the covered proceeding; and

10 7. Any other relevant factor.

11 D. A judicial officer who conducts a judicial interview shall
12 have training in interviewing a child in accordance with judicial
13 standards established under other law of this state.

14 SECTION 14. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 3405 of Title 12, unless there
16 is created a duplication in numbering, reads as follows:

17 A. The judicial officer shall permit a party, the child's
18 attorney, and the guardian ad litem to propose questions in a record
19 for the judicial interview. The judicial officer shall determine
20 the questions asked of the child.

21 B. The judicial officer shall require an interview record to be
22 made.

23 C. The judicial officer shall permit the child's attorney and
24 guardian ad litem to attend the interview in person.

1
2 D. The judicial officer may not permit a party or the party's
3 attorney to attend the interview.

4 E. If all parties agree, the parties may stipulate on the
5 record that they waive access to the interview record. A
6 stipulation is not valid unless approved by a judicial officer. The
7 judicial officer may not approve a stipulation unless each party
8 stipulates that the party waives any right to access the interview
9 record, to be informed of communication by the child during the
10 interview, and to respond to the child's communication. Unless
11 otherwise stated in the stipulation, a stipulation under this
12 section precludes access to the interview record by the parties in a
13 future covered proceeding, including an appeal.

14 F. Before starting the interview, the judicial officer shall
15 explain to the child in an age-appropriate manner information about
16 the interview, including:

17 1. That the child is not required to answer the judicial
18 officer's questions;

19 2. That the child's views will be considered but the judicial
20 officer is the decisionmaker;

21 3. That an interview record will be made;

22 4. Whether any individual will be observing or listening to
23 the interview in real time;
24

1 5. Whether the interview record will be provided to the
2 parties; and

3 6. That the judicial officer under other law of this state may
4 be required in some circumstances to share with another person the
5 child's communication.

6 SECTION 15. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 3406 of Title 12, unless there
8 is created a duplication in numbering, reads as follows:

9 A. Unless otherwise prohibited by a stipulation approved
10 pursuant to subsection E of Section 5 of this act and except as
11 provided under subsection B of this section, on request of a party
12 and after payment of required costs, the judicial officer shall
13 grant access to the interview record if a party appeals the final
14 decision in the covered proceeding.

15 B. Unless otherwise prohibited by a stipulation approved
16 pursuant to subsection E of Section 5 of this act, if the child
17 makes a factual allegation in the judicial interview, other than
18 communication of the child's views, that is or may be contested and
19 is potentially dispositive in the covered proceeding, the judicial
20 officer shall disclose the allegation to the parties and provide
21 them an opportunity to submit evidence and legal argument in
22 response.

1 C. The right of the child, the child's attorney, and the
2 guardian ad litem to access the interview record and participate in
3 the covered proceeding is governed by other law.

4 D. The judicial officer shall determine appropriate
5 restrictions on the disclosure of the contents of the interview and
6 the interview record to nonparties during the covered proceeding and
7 after its conclusion.

8 E. On a finding required under Section 24A.29 of Title 51 of
9 the Oklahoma Statutes, the court shall seal the interview record
10 from public access.

11 F. The decision whether to permit the child to provide
12 testimony in a covered proceeding is governed by other law.

13 SECTION 16. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 3407 of Title 12, unless there
15 is created a duplication in numbering, reads as follows:

16 In applying and construing this uniform act, a court shall
17 consider the promotion of uniformity of the law among states that
18 enact it.

19 SECTION 17. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 3408 of Title 12, unless there
21 is created a duplication in numbering, reads as follows:

22 This act shall apply to a judicial interview requested or
23 initiated on or after the effective date of this act.

24 SECTION 18. This act shall become effective November 1, 2026.

1 Passed the House of Representatives the 24th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate